

Opinion of SOTOMAYOR, J.

agent rather than a Federal Bureau of Narcotics agent who unlawfully entered Boule's property and used constitutionally excessive force against him plainly is not the sort of "meaningful" distinction that our new-context inquiry is designed to weed out. *Ibid.*

It is of course well established that a *Bivens* suit involving an entirely "new category of defendants" arises in a "new context." *Ziglar*, 582 U. S., at 135; see also *Hernández*, 589 U. S., at —. The Court, however, has never relied on this principle to draw artificial distinctions between line-level officers of the 83 different federal law enforcement agencies with authority to make arrests and provide police protection. See Dept. of Justice, C. Brooks, Federal Law Enforcement Officers, 2016—Statistical Tables (NCJ 251922, Oct. 2019), <https://bjs.ojp.gov/content/pub/pdf/fleo16st.pdf>. Indeed, if the "new context" inquiry were defined at such a fine level of granularity, every case would raise a new context, because the Federal Bureau of Narcotics no longer exists. See National Archives, Records of the Drug Enforcement Administration [DEA] (Aug. 15, 2016), <https://www.archives.gov/research/guide-fed-records/groups/170.html>.

Moreover, the "new category of defendants" language traces back to a different concern raised in the Court's decision in *Correctional Services Corp. v. Malesko*, 534 U. S. 61, 68 (2001). That case involved an Eighth Amendment claim brought by a federal prisoner against a private corporation under contract with the federal Bureau of Prisons. The Court observed that "the threat of suit against an individual's employer," rather than "the individual directly responsible for the alleged injury," "was not the kind of deterrence contemplated by *Bivens*." *Id.*, at 70–71. Applying *Bivens* to a corporate defendant would amount to a "marked exten-

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ence in statutory mandates as between CBP agents and other law enforcement officers is "meaningful," which our precedents require him to do. *Id.*, at 139.